

FEDERAL MARITIME COMMISSION

DOCKET NO. 14-16

BALTIC AUTO SHIPPING, INC.

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV and
EMPIRE UNITED LINES CO., INC.**

**DECLARATION OF GERARD S. DOYLE, JR. IN SUPPORT OF
RESPONDENTS' PETITION REGARDING ATTORNEY FEES**

1. I am a member of the Law Office of Doyle & Doyle, attorneys for Respondents. I submit this Declaration in support of Respondents' Petition Regarding Attorney Fees.

2. I am a 1978 graduate of Fordham Law School and admitted to practice in the federal and state courts of New York and New Jersey. I have practiced maritime law for over 35 years, representing major containership operators, international trading and logistics companies such as NVOCCs, as well as start-up businesses including technology companies developing systems for the transportation industry. I have participated in multiple proceedings before the Commission and have written and lectured extensively on international trade, shipping and technology issues.

3. As attorney for Respondents in this matter, I am familiar with all the work done on the matter and with the hourly rates charged. I prepared and edited all the invoices sent to Respondents for my services, true and correct copies of which are attached hereto as Exhibit A.

4. These invoices show the amount of time spent on this matter and the fees assessed to Respondents from December 2, 2014 through June 28, 2017, and these invoices reflect work actually performed and necessary in this case.

5. The total amount of fees my firm has invoiced in this matter is \$77,189.62. All work was performed by me and billed at my rate of \$325.00 per hour.

6. The majority of the work in this matter occurred after December 18, 2014, which was the effective date of the Coble Act.

7. Only 19.75 hours or \$6,418.75 of the fees related to work occurring prior to December 18, 2014. The total amount of work performed after December 18, 2014 was \$70,770.87.

8. To date Respondents have paid \$62,134.19 of these invoices.

9. The hourly rate charged by my firm is below the rates charged by attorneys with similar skill and experience in the Washington, DC metropolitan area, as shown by reference to the Laffey Matrix (attached as Exhibit B). The Laffey Matrix has been approved by the Commission. *See Petra Pet, Inc. v. Panda logistics LTD., Panda Logistics Co. Ltd.*, 33 S.R.R. 336 (F.M.C. 2014).

10. I declare under penalty of perjury that the foregoing is true and correct. Executed on July 11, 2017 in Short Hills, NJ.


Gerard S. Doyle, Jr.

EXHIBIT A

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Selection Criteria

Slip Classification Open; Closed
Slip Date 1/1/2014 - 6/28/2017
Clie Selection Include: Empire United Lines
Time Selection Include: DG; GD
Acti Selection Include: E105; E110; E122; advise; contract; corp seal; federal express; filing fees; misc.; search fees; witness fee

Rate Info - identifies rate source and level

Slip ID	Dates and Time	Timekeeper	Units	Rate	Slip Value
Posting Status	Description	Activity	DNB Time	Rate Info	
		Client	Est. Time	Bill Status	
		Reference	Variance		
33432	TIME	GD			
12/2/2014	WIP	contract	1.00	325.00	325.00
	review FMC Complaint and 2011 Settlement	Empire United Lines	0.00	T@1	
	Agreement; DNJ Complaint (Baltic Auto		0.00		
	Shipping -- Claimant); review Order of		0.00		
	Dismissal research FMC Practice Rules				
33433	TIME	GD			
12/3/2014	WIP	contract	1.50	325.00	487.50
	continue w/FMC Procedure research;	Empire United Lines	0.00	T@1	
	discuss w/ MH and agree on strategy and		0.00		
	tactics (Motin for a More Definite Statement)		0.00		
33436	TIME	GD			
12/3/2014	WIP	contract	1.25	325.00	406.25
	Baltic (FMC): begin drafting Motion papers	Empire United Lines	0.00	T@1	
	(More Definite Statement)		0.00		
33438	TIME	GD			
12/4/2014	WIP	contract	0.58	325.00	189.58
	Baltic (FMC): discuss Baltic further w/ MH;	Empire United Lines	0.00	T@1	
	leave message for Nussbaum, Esq.; call Ely		0.00		
	Goldinn (Fox Rothschild); Nussbaum returns		0.00		
	call - will ask client for additional information;				
	copy of "audit".				
33442	TIME	GD			
12/8/2014	WIP	contract	2.25	325.00	731.25
	Baltic (FMC): discusson w/ MH rebaltic @	Empire United Lines	0.00	T@1	
	length; discuss procedure and tactics; send		0.00		
	confirmatin of demand for more specfici		0.00		
	information to Nussbaum citing Statute of				
	Limitaitons defense and release; make claim				

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Slip ID	Dates and Time Posting Status Description	Timekeeper Activity Client Reference	Units DNB Time Est. Time Variance	Rate Rate Info Bill Status	Slip Value
	for repayment of \$200,000 loan to Pres. of Baltic (personal)				
33448	TIME	GD			
12/9/2014		contract	2.83	325.00	920.83
WIP		Empire United Lines	0.00	T@1	
	Baltic (FMC): discuss w/ MH; contact FMC re: extension of time to move/answer; draft Motion; Order; Notice of Appearance; spoke w/ Jon Werner (DNJ fraud lawsuit)		0.00		
			0.00		
33449	TIME	GD			
12/10/2014		contract	3.42	325.00	1110.42
WIP		Empire United Lines	0.00	T@1	
	Baltic (FMC) Clean up draft Motion; proposed order; Notice of Appearance; serve draft on atty for Baltic (Nussbaum) warnign it will befiled tomorrow; discuss w/ MH; prepar Appendix tobe filed w/ Motion; NMussbaum responds (breach of settlement agreement) - but no more information; Empire instruts D&D tofile Motin		0.00		
			0.00		
33452	TIME	GD			
12/11/2014		contract	4.42	325.00	1435.42
WIP		Empire United Lines	0.00	T@1	
	Receive 11 emails form Nussbaum; quick review - forward to MH and JW; careful review; amend Motin for More Definite Statement to address the non-responsive response; disucss w/ MH (40)		0.00		
			0.00		
33456	TIME	GD			
12/12/2014		contract	1.33	325.00	433.33
WIP		Empire United Lines	0.00	T@1	
	Baltic (FMC): discuss 11/2011 informal Complaint @ FMC (45); contact FMC Consumer Affairs; Office of Secretary; leave v/m w/ Asst. Secy Dikon; advise Empire		0.00		
			0.00		
33454	TIME	GD			
12/12/2014		contract	1.17	325.00	379.17
WIP		Empire United Lines	0.00	T@1	
	Presiniakivos Loan Agreement (\$200,000); send follow up to \$200,000 loan inquiry; explain that Nussbaum's reply was not responsive; discuss w/ MH (25)		0.00		
			0.00		
33461	TIME	GD			
12/18/2014		contract	0.92	325.00	297.92
WIP		Empire United Lines	0.00	T@1	
	receive response to FMC Motion (from		0.00		
			0.00		

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Slip ID	Dates and Time	Timekeeper	Units	Rate	Slip Value
Posting Status		Activity	DNB Time	Rate Info	
Description		Client	Est. Time	Bill Status	
		Reference	Variance		
	Nussbaum); a dump (repeat of earlier dump) of old emails;m review Nussbaum's Brief; disucss w/ MH; research "abuse of process"				
33498	TIME	GD			
12/23/2014		contract	1.83	325.00	595.83
WIP		Empire United Lines	0.00	T@1	
Baktic: Review and analyze Decison/Order on Motion for a More Definite Statement; granted in part; denied in part; draft memo trying to "explain" and set out strategic issues going forward; discuss w/ MH (45)			0.00		
			0.00		
33511	TIME	GD			
1/5/2015		contract	0.40	325.00	130.00
WIP		Empire United Lines	0.00	T@1	
Baltic: discuss Werner filings and Nussbaum's reponse (MH)			0.00		
			0.00		
33551	TIME	GD			
1/6/2015		contract	2.75	325.00	893.75
WIP		Empire United Lines	0.00	T@1	
Baltic: discuss w/ MH (45) making motion to dismiss/stay on basis of DNJ lawsuit; discuss w/ J Werner; research Statute of Limitatins under FMC rules and decisons; advise MH and provide him copy of FMC decisons			0.00		
			0.00		
33562	TIME	GD			
1/9/2015		contract	1.75	325.00	568.75
WIP		Empire United Lines	0.00	T@1	
Discuss DNJ decisons taking jurisdiction from the Bankruptcy Court; discuss applying for sanctions against Nussbaum; discuss w/ MH (25) ; begin 2d review of Werner documents; draft of sanctions motion; correspondence to re-open; receive and forward amended Complaint; initial review			0.00		
			0.00		
33563	TIME	GD			
1/12/2015		contract	2.50	325.00	812.50
WIP		Empire United Lines	0.00	T@1	
review Amended Complaint (2d tme); continue w/ S/L research; "Discovery" Rule; begin drafting Summary judgment Motion todismiss			0.00		
			0.00		
33571	TIME	GD			
1/13/2015		contract	1.42	325.00	460.42
WIP		Empire United Lines	0.00	T@1	
			0.00		

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Slip ID	Dates and Time	Timekeeper	Units	Rate	Slip Value
Posting Status		Activity	DNB Time	Rate Info	
Description		Client	Est. Time	Bill Status	
		Reference	Variance		
	Baltic: finish draft of Answer; review FMC's electronic filing rules		0.00		
33585	TIME	GD			
1/20/2015		contract	2.50	325.00	812.50
WIP		Empire United Lines	0.00	T@1	
	Baltic: Review MH comments on draft Answer; call MH as requested; discuss motion for sanctions on basis that FMC Complaint is trying to extort refund of demurrage charges; discuss w/ MH (45 minutes); make changes to Answer; send to MH for review; advised of TRO in DNJ - review Complaint; incorporate 15 cv 00355 (new DNJ action) into FMC Answer		0.00		
33587	TIME	GD			
1/21/2015		contract	3.50	325.00	1137.50
WIP		Empire United Lines	0.00	T@1	
	Brief review of JW's OTSC (DNJ) paperes; further amend FMC Answer to conform to MH certification re: status of Baltic as a customer; discuss motin to reconsider or stay @ FMC (MH 30 minutes); in view of possibility of inconsistent results; contact FMC; leave voicemail with office of ALJ; draft request for stay; circulate to MH and JW for comment; collect exhibits; submit and resubmit per FMC instruction (no charge)		0.00		
33593	TIME	GD			
1/22/2015		contract	0.58	325.00	189.58
WIP		Empire United Lines	0.00	T@1	
	Prepar Answer for service on FMC and Nussbaum (clean up)		0.00		
33594	TIME	GD			
1/23/2015		contract	1.25	325.00	406.25
WIP		Empire United Lines	0.00	T@1	
	Discuss FMC counterclaim to be included in Answer; discuss strategy; discuss ALJ referring case to Enforcement; cuonter-attack; discuss prior experince with Enforcement (Vern Hill)		0.00		
33596	TIME	GD			
1/23/2015		contract	0.75	325.00	243.75
WIP		Empire United Lines	0.00	T@1	
	review FMC's rules on pleading and advise Empire i/c/w amending an Answer by adding a couterclaim; review JW's Reply Brief (DNJ); dsicuss w/ MH the kind of support		0.00		

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Slip ID	Dates and Time	Timekeeper Activity	Units DNB Time	Rate Rate Info	Slip Value
	Posting Status	Client	Est. Time	Bill Status	
	Description	Reference	Variance		
	required for making a counter-claim; MH advises evidence is coming.				
33598	TIME	GD	1.50	325.00	487.50
	1/23/2015	contract	0.00	T@1	
	WIP	Empire United Lines	0.00		
	Baltic: Review EUL bank statements, etc., discuss specific grounds for making claim for unpaid freight charges - bad faith, etc., ; draft counterclaim; correct Answer as directed by EUL; discuss w/ MH; assemble a file w/ FMC and serve on counsel		0.00		
33665	TIME	GD	0.58	325.00	189.58
	1/29/2015	contract	0.00	T@1	
	WIP	Empire United Lines	0.00		
	FMC Judge wants to see Hochberg (DNJ) decision; discuss w/ MH (20); re Nussbaum no stay - moot as no TRO issued; discuss w/ MH		0.00		
33669	TIME	GD	1.50	325.00	487.50
	1/30/2015	contract	0.00	T@1	
	WIP	Empire United Lines	0.00		
	review Nussbaum-Werner correspondence (forwarded by MH); draft reply to Nussbaum's opposition to stay; discuss (briefly) w/ MH; circulate for comments		0.00		
33676	TIME	GD	0.67	325.00	216.67
	1/30/2015	contract	0.00	T@1	
	WIP	Empire United Lines	0.00		
	Prepare, file and serve Reply to Response in opposition to stay		0.00		
33730	TIME	GD	2.50	325.00	812.50
	2/3/2015	contract	0.00	T@1	
	WIP	Empire United Lines	0.00		
	review Complainant's initial disclosures; review FMC Order Denying Request for Stay; advise MH and JW; begin detailed analysis of the Order; research FMC decisions on Statute of Limitations and Reparations		0.00		
33739	TIME	GD	2.17	325.00	704.17
	2/5/2015	contract	0.00	T@1	
	WIP	Empire United Lines	0.00		
	Baltic; conference call w/ Nussbaum and ALJ; discuss Statute of Limitations - to be resolved before going forward; advise MH; discuss ; research continued on Summary		0.00		

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Slip ID	Dates and Time	Timekeeper	Units	Rate	Slip Value
Posting Status		Activity	DNB Time	Rate Info	
Description		Client	Est. Time	Bill Status	
		Reference	Variance		
Judgment; read cases supplied by ALJ					
33742	TIME	GD			
2/6/2015		contract	0.75	325.00	243.75
WIP		Empire United Lines	0.00	T@1	
scuor 2011 DNJ Verified allegations for			0.00		
"discrimination"; begin draft of Summary			0.00		
Judgment motion			0.00		
33759	TIME	GD			
2/9/2015		contract	1.50	325.00	487.50
WIP		Empire United Lines	0.00	T@1	
Work on Summary Judgment motion			0.00		
33761	TIME	GD			
2/10/2015		contract	0.75	325.00	243.75
WIP		Empire United Lines	0.00	T@1	
Nussbaum asks for data on over 700			0.00		
shipments; brief review and forward ot EUL			0.00		
33773	TIME	GD			
2/12/2015		contract	2.50	325.00	812.50
WIP		Empire United Lines	0.00	T@1	
Review and discuss findings of MH that			0.00		
Nussbaums' shipments were idntical to			0.00		
those sued and settled in 2011; continue with					
SJ Motion; (disucssions w/ MH - 35)					
33777	TIME	GD			
2/13/2015		contract	1.00	325.00	325.00
WIP		Empire United Lines	0.00	T@1	
prepar response to Nussbaum's "discovery"			0.00		
rquests; demand w/drawal of FMC			0.00		
complaint; continue w/ SJ motion					
33787	TIME	GD			
2/16/2015		contract	3.00	325.00	975.00
WIP		Empire United Lines	0.00	T@1	
Forward transcript (recording) of			0.00		
FMCDiscussionsto MH; disucss w/ MH (45);			0.00		
review Exhibit A resposnes; wo;rk on status					
report and letter to Judge (supposed to be					
"Joint"); but it looks unlikely					
33805	TIME	GD			
2/19/2015		contract	1.17	325.00	379.17
WIP		Empire United Lines	0.00	T@1	
Review Nussbaum's Staus letter; analyze;			0.00		
forward to MH; dsicuss w/ MH (30)			0.00		

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Slip ID	Dates and Time	Timekeeper	Units	Rate	Slip Value
	Posting Status	Activity	DNB Time	Rate Info	
	Description	Client	Est. Time	Bill Status	
		Reference	Variance		
33815	TIME	GD	1.17	325.00	379.17
	2/23/2015	contract	0.00	T@1	
	WIP	Empire United Lines	0.00		
	review baltic complaints; corporate information; staus letters to FMC in preparatio for confernce this P.M.		0.00		
33817	TIME	GD	2.75	325.00	893.75
	2/23/2015	contract	0.00	T@1	
	WIP	Empire United Lines	0.00		
	Confence call w/ FMC ALJ Guthridge (90 minutes); collect Baltic Auto Georgia material, cover letter for "in camera" review by ALJ; ALJ expands Respondents motion to include "Release and Settlement"; advise MH and discuss (at length)		0.00		
33819	TIME	GD	2.00	325.00	650.00
	2/24/2015	contract	0.00	T@1	
	WIP	Empire United Lines	0.00		
	research NJ law on "settlemnt and release" (includes t/c w/ MH - 30); wok on SJ Motion		0.00		
33823	TIME	GD	2.33	325.00	758.33
	2/26/2015	contract	0.00	T@1	
	WIP	Empire United Lines	0.00		
	Bgin review of massive doucment dump produced by EUL; short confernce call w/ Judge; Nussbaum to produce audit; advise MH; MH wants diiscovery form Baltic		0.00		
33830	TIME	GD	1.75	325.00	568.75
	2/27/2015	contract	0.00	T@1	
	WIP	Empire United Lines	0.00		
	Lengthy discussion w/ MH re discovery against Nussbaum (1 hour) draft request t Nussbaum and send; begin purring discovery resposne ine order		0.00		
33859	TIME	GD	3.50	325.00	1137.50
	3/2/2015	contract	0.00	T@1	
	WIP	Empire United Lines	0.00		
	Research NJ law on "settlements" and "release"; gather the documents to be sent to Nussbaum; draft cover note and forward to MH for approval, comment; exchange and discuss; agree; work on SJ motion		0.00		

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Slip ID	Dates and Time	Timekeeper	Units	Rate	Slip Value
Posting Status		Activity	DNB Time	Rate Info	
Description		Client Reference	Est. Time Variance	Bill Status	
33863	TIME	GD	1.00	325.00	325.00
3/3/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Work on Summary Judgment Motion			0.00		
33868	TIME	GD	0.83	325.00	270.83
3/4/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Discussion re: MSC Releases; Nussbaum			0.00		
lies; confront Nussbaum and ask for					
confirmation - we'll gt documents or					
extension					
33873	TIME	GD	2.50	325.00	812.50
3/6/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Discuss Baltic's refusal to provide discovery;			0.00		
letter to Judge requesting Baltic material and					
extend deadline					
33880	TIME	GD	0.50	325.00	162.50
3/10/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
5 copies of 3/6 report to ALJ and Nussbaum			0.00		
33881	TIME	GD	1.50	325.00	487.50
3/10/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Work on Summary Decision motion			0.00		
33886	TIME	GD	1.00	325.00	325.00
3/11/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Continue work on Summary Decision motion			0.00		
33884	TIME	GD	1.50	325.00	487.50
3/11/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Review Nussbaum brief in Opposito to			0.00		
Respondents' request for Discovery					
conference and extension of time; discuss (3)					
w/ MH					
33887	TIME	GD	2.17	325.00	704.17
3/12/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
review files on discovery disputes, audit and			0.00		
Motions; concall w/ ALJ re discovery (45);					
Motion Schedule; work on Summary Decision					
motion and Hitrinov Certification					

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Slip ID	Dates and Time	Timekeeper	Units	Rate	Slip Value
Posting Status		Activity	DNB Time	Rate Info	
Description		Client	Est. Time	Bill Status	
		Reference	Variance		
33897	TIME	GD	1.33	325.00	433.33
3/16/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Work on Summary Decison Motion			0.00		
33901	TIME	GD	0.58	325.00	189.58
3/19/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Review Nussbaum Motin for teleconfernce; review EUL Counerclaim (subject of Nussbaum request)			0.00		
33903	TIME	GD	1.75	325.00	568.75
3/19/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Work "polishing"/editing Summary Decisions motion			0.00		
33905	TIME	GD	3.17	325.00	1029.17
3/20/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Final work on Certificatin of MH and Memorandum in support of SD Motion w/ much correspondence w/ MH; review requested changes; accept			0.00		
33907	TIME	GD	1.17	325.00	379.17
3/20/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
objection and response to Nussbaum's request for release of 21 shipment information; file w/ FMC			0.00		
33909	TIME	GD	4.00	325.00	1300.00
3/23/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Moti for Summary Decision: make final final changes, additions; conform Certification and memorandum; review; proof; review; file			0.00		
33910	TIME	GD	1.00	325.00	325.00
3/24/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Motin for Summary Decisio: colelct; put hard copy package together; serve on FMC and Complaiant			0.00		
33919	TIME	GD	0.33	325.00	108.33
3/25/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Follow up w/ Nussbaum' - request for XL spreadsheet w/ audit material; set up			0.00		

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Slip ID		Timekeeper	Units	Rate	Slip Value
Dates and Time		Activity	DNB Time	Rate Info	
Posting Status		Client	Est. Time	Bill Status	
Description		Reference	Variance		
discovery dispute; research FRCP discovery requirements for "native format"					
33921	TIME	GD	0.50	325.00	162.50
3/26/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Review of "Managing Discovery of Electronic Information - A Judge's Guide re "native format" (Audit issue); put all "audit", "cunterclaim" and "21 shipments" pleadings, correspondence in order; in perparati for next rund			0.00		
34013	TIME	DG	0.67	295.00	196.67
4/1/2015		advise	0.00	T	
WIP		Empire United Lines	0.00		
Reviewed and revised GSD, Jr.'s latest draft of a motion to compel production of Exhibit H in native format; meeting with GSD, Jr. re: same.			0.00		
		Baltic			
34054	TIME	GD	2.50	325.00	812.50
4/1/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Begin draft of motion to Compel Production of EX. H Spreadsheet - native format			0.00		
34069	TIME	GD	1.58	325.00	514.58
4/2/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Motin to Produce Spreadsheet; re-workded; sent to MH; filed w/ FMC (electronicaly and by mail)			0.00		
34048	TIME	DG	0.33	295.00	98.33
4/13/2015		advise	0.00	T	
WIP		Empire United Lines	0.00		
Prepared a DVD-R copy of the high resolution version of Exhibit H of Baltic's audit for mailing to Michael H.			0.00		
		Baltic			
34103	TIME	GD	0.42	325.00	135.42
4/14/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Review opposition to motion to produce original Ex. H; explain why deposition not useful			0.00		

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Slip ID	Timekeeper	Units	Rate	Slip Value
Dates and Time	Activity	DNB Time	Rate Info	
Posting Status	Client	Est. Time	Bill Status	
Description	Reference	Variance		
34144	GD	0.75	325.00	243.75
TIME	contract	0.00	T@1	
4/16/2015	Empire United Lines	0.00		
WIP		0.00		
Preparation for call w/ MH; discuss status of MH cases (fmc, dnj, edny)		0.00		
34155	GD	0.67	325.00	216.67
TIME	contract	0.00	T@1	
4/20/2015	Empire United Lines	0.00		
WIP		0.00		
review Nussbaum brief in support of requiremnt for extnsion of time; review correspondence w/ MH re: subpoena; review FMC Rules re: subpoena; advise MH on all of the above		0.00		
34165	GD	1.75	325.00	568.75
TIME	contract	0.00	T@1	
4/21/2015	Empire United Lines	0.00		
WIP		0.00		
Prepare oppositin and response to Nussbaum's motion while working w/ FMC; Order - success; forward to MH		0.00		
34167	GD	1.75	325.00	568.75
TIME	contract	0.00	T@1	
4/22/2015	Empire United Lines	0.00		
WIP		0.00		
Review Nussbaum's brief and affirmation in DNJ suit; advise MH that in the FMC case his defense will be that delay in releasing containers after SA&MR and w/in 3 years means not time barred; not barred by SA&MR; request facts about release; respond to MH t/p message		0.00		
34176	GD	0.42	325.00	135.42
TIME	contract	0.00	T@1	
4/24/2015	Empire United Lines	0.00		
WIP		0.00		
Discussion w/ MH		0.00		
34177	GD	0.92	325.00	297.92
TIME	contract	0.00	T@1	
4/24/2015	Empire United Lines	0.00		
WIP		0.00		
Nussbaum Motin (#2) for even more time; continuw w/ rview; begin on opposition		0.00		
34178	GD	3.75	325.00	1218.75
TIME	contract	0.00	T@1	
4/27/2015	Empire United Lines	0.00		
WIP		0.00		
Draft and file Oppositon to Baltic's motin for further extension of time to respond to Empire's motion to dismiss		0.00		

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34179	TIME	GD	2.17	325.00	704.17
	4/28/2015	contract	0.00	T@1	
	WIP	Empire United Lines	0.00		
	Review FMC Order for con call re: Motin for extension of time; review FMC Order; Baltic makes motion to amend Complaint (adding JW and firm); review papers; forward all to MH; discuss w/ JW (JW called GD)		0.00		
34182	TIME	GD	1.67	325.00	541.67
	4/28/2015	contract	0.00	T@1	
	WIP	Empire United Lines	0.00		
	Con call w/ FMC ALJ; begin research for memo in opposition to moiton to amend complaint		0.00		
34198	TIME	DG	0.58	295.00	172.08
	4/28/2015	advise	0.00	T	
	WIP	Empire United Lines	0.00		
	Conference call with GSD, Jr., Baltic's counsel and the ALJ re: Baltic's motion for an extension to file its opposition to Empire's motion for partial summary judgment.		0.00		
		Baltic			
34183	TIME	GD	1.17	325.00	379.17
	4/29/2015	contract	0.00	T@1	
	WIP	Empire United Lines	0.00		
	Research "retaliaton" and othe issues i/c/w opposition to motion to amend complaint		0.00		
34210	TIME	GD	2.58	325.00	839.58
	4/30/2015	contract	0.00	T@1	
	WIP	Empire United Lines	0.00		
	3 Motins to extend time to respond to 3 motions; discuss at length w/ MH; draft Motion; begin review of Motion for Reconsideratio (release of B/L)		0.00		
34276	TIME	GD	1.00	325.00	325.00
	5/1/2015	contract	0.00	T@1	
	WIP	Empire United Lines	0.00		
	Baltic: Work on Motion to amended briefing schudle; amend per Nussbaum's consent/no consent tto some extenisions (butnot others)		0.00		
34212	TIME	GD	1.17	325.00	379.17
	5/1/2015	contract	0.00	T@1	
	WIP	Empire United Lines	0.00		
	Motion for Amendment of Briefing Schedule (3 Motins); amnde per Nussbaums"s "consent"/"no consent; serve and file		0.00		

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Dates and Time	Activity	DNB Time	Rate Info	
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Description	Reference	Variance		
34285 TIME	GD	2.00	325.00	650.00
5/4/2015	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Baltic: Draft Oppositon to Claimant's motion to amend Complaint; filed because no extension granted; expedited		0.00		
34270 TIME	DG	0.75	295.00	221.25
5/5/2015	advise	0.00	T	
WIP	Empire United Lines	0.00		
Conference call with GSD, Jr. and Michael H. re: status of motions and action items.		0.00		
	Baltic			
34291 TIME	GD	1.25	325.00	406.25
5/5/2015	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Baltic: review Nussbaum's Motion for reconsideration; call w/ MH		0.00		
34292 TIME	GD	1.33	325.00	433.33
5/6/2015	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Baltic: Motion for scheduling confrence to sort out briefing schedules; copy to MH, JW		0.00		
34297 TIME	GD	1.50	325.00	487.50
5/6/2015	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Baltic: begin response ot Motion for reconsideration		0.00		
34289 TIME	DG	2.50	295.00	737.50
5/7/2015	advise	0.00	T	
WIP	Empire United Lines	0.00		
Reviewed Baltic's letter to the NJ District Court referencing the FMC proceedings; meeting with GSD, Jr. re: same; reviewed and revised the latest version of GSD, Jr.'s motion for leave to file supplemental opposition papers in opposition to Baltic's motion to amend the complaint; conference call with GSD, Jr. and Michael H. re: same and advice.		0.00		
	Baltic			
34299 TIME	GD	7.50	325.00	2437.50
5/7/2015	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Baltic: Nussbaum letter in DNJ acton; motin to supplemnt esponse to oppositin to amend Complaint and extend briefing schedule;		0.00		

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Slip ID		Timekeeper	Units	Rate	Slip Value
Dates and Time		Activity	DNB Time	Rate Info	
Posting Status		Client	Est. Time	Bill Status	
Description		Reference	Variance		
draft opposito to Reconsideration; distribute to MH for comment					
34306	TIME	DG	2.00	295.00	590.00
5/8/2015		advise	0.00	T	
WIP		Empire United Lines	0.00		
Meetings and telephone calls with GSD, Jr. re: review and finalization of opposition to Baltic's motion for reconsideration.			0.00		
		Baltic			
34304	TIME	GD	1.50	325.00	487.50
5/8/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Argue w/ MH to let us file			0.00		
34312	TIME	GD	2.00	325.00	650.00
5/11/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Baltic: Begin review of Opp. to Motion for SD and Affidavit i Support			0.00		
34321	TIME	GD	2.00	325.00	650.00
5/12/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Baltic: Work though Baltic points II A - E; review Exhibits and Petronovias' Aff.			0.00		
34323	TIME	GD	0.50	325.00	162.50
5/12/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
review FMC Orders (2) denying Motin to Amend Complaint, extendign Empire time to reply, ordering Nussbaum to comply with Initial Order procedures			0.00		
34344	TIME	GD	2.17	325.00	704.17
5/18/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Baltic: work on Reply to C's opposition to motion to dismiss			0.00		
34355	TIME	GD	0.75	325.00	243.75
5/19/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Baltic: Motion in Opposition to Nussbaum's request to Reply to Oppositon for Reconsideration; distribute to MH			0.00		
34371	TIME	GD	2.50	325.00	812.50
5/26/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		

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Slip ID	Timekeeper	Units	Rate	Slip Value
Dates and Time	Activity	DNB Time	Rate Info	
Posting Status	Client	Est. Time	Bill Status	
Description	Reference	Variance		
Baltic: draft Reply to "Counter-Facts"; discuss briefly with MH		0.00		
34347 TIME	GD	2.50	325.00	812.50
5/28/2015	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Baltic: work on Reply Brief (dismiss); Nussbaum's motin to file a Reply counter-statement of Material Facts; distribute to MH		0.00		
34464 TIME	GD	0.75	325.00	243.75
6/3/2015	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Prepare rebuttal Exhibit to "five particular shipments" (Ex. U); show G&G as shipper; no mention of Baltic; dismiss "O"		0.00		
34477 TIME	GD	1.00	325.00	325.00
6/10/2015	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
prepare for oal argument (teleophone); review 2/23hearing setting up motion for summary decison in first palce		0.00		
34576 TIME	DG	2.00	295.00	590.00
6/12/2015	advise	0.00	T	
WIP	Empire United Lines	0.00		
Telephone motion hearing with GSD, Jr., Baltics's counsel and the Judge re: Empire United Lines's motion for summary judgment.		0.00		
	Baltic			
34482 TIME	GD	3.00	325.00	975.00
6/12/2015	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Prepare for oral argument (1 hour); oral argument (2 hours)		0.00		
34486 TIME	GD	0.50	325.00	162.50
6/15/2015	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Discuss oral argument and anticipated Nussbaum arguments in post-argument briefs		0.00		
34728 TIME	DG	0.75	295.00	221.25
7/2/2015	advise	0.00	T	
WIP	Empire United Lines	0.00		
E-mailed Jon Werner re: Baltic's audit exhibit positions and files submitted in the FMC		0.00		

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Slip ID		Timekeeper	Units	Rate	Slip Value
Dates and Time		Activity	DNB Time	Rate Info	
Posting Status		Client	Est. Time	Bill Status	
Description		Reference	Variance		
matter, in response to Jon Werner's request for the same; prepared DVD-R for mailing to Jon Werner re: audit exhibit files disclosed by Baltic in the FMC matter.					
		Baltic			
34684	TIME	GD	0.75	325.00	243.75
7/6/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Discuss filing of "original" audit w/ JW; review JW's request to FMC and letter to Magistrate Falk; contact FMC Docket Librarian; report			0.00		
34690	TIME	GD	2.50	325.00	812.50
7/7/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Receive and review transcript of oral argument; begin work on response to (not yet received) Nussbaum post-argument response.			0.00		
34692	TIME	GD	2.17	325.00	704.17
7/8/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Research and continue drafting response to post-argument brief (anticipating N's arguments)			0.00		
34696	TIME	GD	0.50	325.00	162.50
7/9/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Discussions w/ JW re retrieving or confirming whether FMC has the "original" audit; discuss JW's standing and ability to review the file himself			0.00		
34704	TIME	GD	1.75	325.00	568.75
7/12/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Begin review and analysis of Nussbaum's post-argument papers (extensive); (Sunday)			0.00		
34705	TIME	GD	2.33	325.00	758.33
7/13/2015		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Second and third reviews and analysis of Nussbaum's post-argument papers; begin on response			0.00		

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Dates and Time	Activity	DNB Time	Rate Info	
Posting Status	Client	Est. Time	Bill Status	
Description	Reference	Variance		
34713 TIME	GD	8.00	325.00	2600.00
7/14/2015	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Post-argument Memorandu		0.00		
34714 TIME	GD	3.00	325.00	975.00
7/15/2015	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Further work on post-argument memorandum		0.00		
34718 TIME	GD	2.50	325.00	812.50
7/16/2015	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Polishing post-argument memorandum; finish and prepare for filing and distribution		0.00		
34789 TIME	GD	0.58	325.00	189.58
7/23/2015	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
telecon w/ MH re: stauts; appeal procedures		0.00		
34842 TIME	GD	0.75	325.00	243.75
8/13/2015	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Nussbaum wants tariff handled on a non-confidential basis; review tariff; review post-Argument memo; admise MH; request instructions		0.00		
35012 TIME	GD	1.42	325.00	460.42
9/15/2015	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Review ALJ's Decsion dismissing case in its entirety and awarding attorneys' fees (59 pages)		0.00		
35034 TIME	GD	0.42	325.00	135.42
9/28/2015	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Nussbaum motion to extend time to file "exceptions"; review; forward to MH		0.00		
35039 TIME	GD	1.00	325.00	325.00
9/29/2015	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Baltic: draft, file and serve brief response to Nussbaum's request for an additonal 40 days to file "exceptions" to ALJ's decision dismissing Baltic's claims		0.00		

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Description	Reference	Variance		
35323 TIME	GD	0.75	325.00	243.75
11/24/2015	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Discuss new FMC Complaint w/ MH; review Complaint and associated FMC issuances; Docket 15-11; advise EUL - will not accept defense		0.00		
35516 TIME	GD	2.17	325.00	704.17
1/18/2016	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
File, forward and begin review of Nussbaum Appeal; finish first read through (MLK Day)		0.00		
35519 TIME	GD	1.50	325.00	487.50
1/19/2016	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Review Initial Decision and <i>in camaera</i> decision vis-a-vis Nussbaum's arguments; re-review Nussbaum's arguments		0.00		
35560 TIME	GD	1.58	325.00	514.58
1/27/2016	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Continue w/ detailed analysis of FMC Initial Decision i/c/w Response to Nussbaum's Exceptions		0.00		
35571 TIME	GD	1.00	325.00	325.00
1/29/2016	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Back for reviewing N's Exceptions; 2 hours but charge as 1		0.00		
35675 TIME	GD	2.75	325.00	893.75
2/12/2016	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Begin drafting Reply to MNussbaum Exceptions; comprehensive re-review of Initial Decision (50+ pages) and Nussbaum's brief (50 pages)		0.00		
35680 TIME	GD	1.17	325.00	379.17
2/16/2016	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Reply to Nussbaum Exceptions: connjue w/ Reply Brief		0.00		

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Slip ID Dates and Time Posting Status Description	Timekeeper Activity Client Reference	Units DNB Time Est. Time Variance	Rate Rate Info Bill Status	Slip Value
35682 TIME 2/17/2016 WIP Continue w/ Reply Brief	GD contract Empire United Lines	0.83 0.00 0.00 0.00	325.00 T@1	270.83
35684 TIME 2/18/2016 WIP Reply Brief	GD contract Empire United Lines	2.50 0.00 0.00 0.00	325.00 T@1	812.50
35691 TIME 2/19/2016 WIP Work on Reply	GD contract Empire United Lines	0.75 0.00 0.00 0.00	325.00 T@1	243.75
35650 TIME 2/29/2016 WIP Reviewed GSD, Jr.'s draft of the reply to Baltic's exceptions to the initial FMC ALJ decision; meeting with GSD, Jr. re: same.	DG advise Empire United Lines Baltic	1.00 0.00 0.00 0.00	295.00 T	295.00
35696 TIME 2/29/2016 WIP Finishing touches on Reply to Nussbaum Exceptions	GD contract Empire United Lines	0.67 0.00 0.00 0.00	325.00 T@1	216.67
36029 TIME 4/25/2016 WIP Follow up w/ Nussbaum encouraging him to draft letter advising FMC to suspend deliberations;I discuss w/ MH; review proposed settlement documentation	GD contract Empire United Lines	0.75 0.00 0.00 0.00	325.00 T@1	243.75
36628 TIME 8/15/2016 WIP Status Report to FMC; flurry of correspondence w/ Nussbaum; receive Nussbaum "discontinuance" motion; distribute	GD contract Empire United Lines	1.50 0.00 0.00 0.00	325.00 T@1	487.50
36629 TIME 8/16/2016 WIP Review Nussbaum's stastus Report; research procedure for stipulations, withdrawal ofappeal; attorneys' fees award	GD contract Empire United Lines	1.67 0.00 0.00 0.00	325.00 T@1	541.67

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36643 TIME 8/22/2016 WIP Begin work on Brief in support/opposition to Nussbaum's Motion to w/d Appeal; discontinue	GD contract Empire United Lines	1.33 0.00 0.00 0.00	325.00 T@1	433.33
36651 TIME 8/24/2016 WIP Reply brief	GD contract Empire United Lines	1.33 0.00 0.00 0.00	325.00 T@1	433.33
36676 TIME 8/30/2016 WIP Polish response to Nussbaum's Motion; serve and file	GD contract Empire United Lines	1.75 0.00 0.00 0.00	325.00 T@1	568.75
36743 TIME 9/3/2016 WIP (Saturday): Review Nusbaum's "reply"; forward to all intersted parties; (9/6) - demand to be educated as to background facts contained in defamatory statements; or I will withdraw	GD contract Empire United Lines	1.17 0.00 0.00 0.00	325.00 T@1	379.17
36745 TIME 9/6/2016 WIP Flurry of correspondence between FMC and Nussbaum; demand additional information form JW/MH	GD contract Empire United Lines	0.58 0.00 0.00 0.00	325.00 T@1	189.58
36752 TIME 9/8/2016 WIP Review JW's materials re: procedural history i/c/w DNJ settlement; review FMC regulations; demand Nussbaum send un-rre-dacted materials; reserve rights	GD contract Empire United Lines	1.42 0.00 0.00 0.00	325.00 T@1	460.42
36764 TIME 9/14/2016 WIP Response to Request for Confidential Treatment and Reply; research due process; enforcement of settlement; begin drafting reply	GD contract Empire United Lines	1.42 0.00 0.00 0.00	325.00 T@1	460.42

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Posting Status		Client	Est. Time	Bill Status	
Description		Reference	Variance		
36767	TIME	GD	2.00	325.00	650.00
9/15/2016		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Work on Reply Memo (Brief) to Sept. Moitons - confidentiality; Reply			0.00		
36768	TIME	GD	1.75	325.00	568.75
9/16/2016		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Finish Reply Memorandum in response to Nussbaum's two 9/2/2016 motions; serve and file w/ FMC			0.00		
36828	TIME	GD	0.58	325.00	189.58
9/21/2016		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Receive, review and forward Nussbaum's angry complaint re: Doyle filing response to Sept. 2 Nussbaum filings			0.00		
36896	TIME	GD	0.67	325.00	216.67
10/10/2016		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Review Nussbaum's letter to FMC - alleging defrauding FMC, criminal behavior; forward to JW, MH for comments and background			0.00		
36901	TIME	GD	1.00	325.00	325.00
10/11/2016		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Work on rebutal/response to Nussbaum's fraud, waiver of attorneys' fees and confidential treatemnt letter			0.00		
36903	TIME	GD	1.17	325.00	379.17
10/12/2016		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Finish draft response to FMC re Nussbaum letter (10/7)			0.00		
36905	TIME	GD	0.75	325.00	243.75
10/14/2016		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
File and serve response letter (rresponse to 10/7 Nussbaum)			0.00		
37336	TIME	GD	0.83	325.00	270.83
1/6/2017		contract	0.00	T@1	
WIP		Empire United Lines	0.00		
Receive FMC Decison and Order; review; forward to MH, JW; review again			0.00		

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Description	Reference	Variance		
37354 TIME	GD	0.75	325.00	243.75
1/17/2017	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Review Nussbaum response and "confidential" appendix		0.00		
37366 TIME	GD	1.17	325.00	379.17
1/20/2017	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Review nussbaum's proposed Joint Status Report; forward to MH, JW; exchange correspondence w/ MH		0.00		
37372 TIME	GD	0.67	325.00	216.67
1/24/2017	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
attempt to get Nussbaum to send proposed Status Report w/ actual documents - all in ne email.		0.00		
37500 TIME	GD	0.67	325.00	216.67
2/3/2017	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
FMC Joint Status Report: back & forth w/ Nussbaum, Esq. re: confirming compliance w/ FMC Order; authorize him to sign my name to, but reserve right to dispute compliance should it become necessary		0.00		
37510 TIME	GD	0.67	325.00	216.67
2/15/2017	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Discusses w/ MH; consider calling FMC to ask for procedural status; re-read DNJ transcript; begin sur-response		0.00		
37512 TIME	GD	3.00	325.00	975.00
2/16/2017	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Draft Sur-Reply addressing newly released, un-redacted App. "A" and App. "B"; drafted, served & filed; back and forth w/ MH		0.00		
37516 TIME	GD	0.58	325.00	189.58
2/21/2017	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Receive, review and forward Nussbaum's objections to sur-reply; advise MH; explain procedural status of proceedings		0.00		

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Dates and Time	Activity	DNB Time	Rate Info	
Posting Status	Client	Est. Time	Bill Status	
Description	Reference	Variance		
37845	GD	0.58	325.00	189.58
TIME				
4/21/2017	contract	0.00	T@1	
WIP	Empire United Lines	0.00		
Review Commission's "final" decision;		0.00		
dismiss; permit petition for attorneys' fees				
Total: Time				
	Billable	238.52		77189.62
	Unbillable	0.00		0.00
	Total	238.52		77189.62
Total: Open				
	Billable	238.52		77189.62
	Unbillable	0.00		0.00
	Total	238.52		77189.62
Total: Hourly				
	Billable	238.52		77189.62
	Unbillable	0.00		0.00
	Total	238.52		77189.62
Grand Total				
	Billable	238.52		77189.62
	Unbillable	0.00		0.00
	Total	238.52		77189.62

EXHIBIT B

LAFFEY MATRIX

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			Years Out of Law School *				
Year	Adjustmt Factor**	Paralegal/ Law Clerk	1-3	4-7	8-10	11-19	20 +
6/01/16- 5/31/17	1.0369	\$187	\$343	\$421	\$608	\$685	\$826
6/01/15- 5/31/16	1.0089	\$180	\$331	\$406	\$586	\$661	\$796
6/01/14- 5/31/15	1.0235	\$179	\$328	\$402	\$581	\$655	\$789
6/01/13- 5/31/14	1.0244	\$175	\$320	\$393	\$567	\$640	\$771
6/01/12- 5/31/13	1.0258	\$170	\$312	\$383	\$554	\$625	\$753
6/01/11- 5/31/12	1.0352	\$166	\$305	\$374	\$540	\$609	\$734
6/01/10- 5/31/11	1.0337	\$161	\$294	\$361	\$522	\$589	\$709
6/01/09- 5/31/10	1.0220	\$155	\$285	\$349	\$505	\$569	\$686
6/01/08- 5/31/09	1.0399	\$152	\$279	\$342	\$494	\$557	\$671
6/01/07-5/31/08	1.0516	\$146	\$268	\$329	\$475	\$536	\$645
6/01/06-5/31/07	1.0256	\$139	\$255	\$313	\$452	\$509	\$614
6/1/05-5/31/06	1.0427	\$136	\$249	\$305	\$441	\$497	\$598

6/1/04-5/31/05	1.0455	\$130	\$239	\$293	\$423	\$476	\$574
6/1/03-6/1/04	1.0507	\$124	\$228	\$280	\$405	\$456	\$549
6/1/02-5/31/03	1.0727	\$118	\$217	\$267	\$385	\$434	\$522
6/1/01-5/31/02	1.0407	\$110	\$203	\$249	\$359	\$404	\$487
6/1/00-5/31/01	1.0529	\$106	\$195	\$239	\$345	\$388	\$468
6/1/99-5/31/00	1.0491	\$101	\$185	\$227	\$328	\$369	\$444
6/1/98-5/31/99	1.0439	\$96	\$176	\$216	\$312	\$352	\$424
6/1/97-5/31/98	1.0419	\$92	\$169	\$207	\$299	\$337	\$406
6/1/96-5/31/97	1.0396	\$88	\$162	\$198	\$287	\$323	\$389
6/1/95-5/31/96	1.032	\$85	\$155	\$191	\$276	\$311	\$375
6/1/94-5/31/95	1.0237	\$82	\$151	\$185	\$267	\$301	\$363

The methodology of calculation and benchmarking for this Updated Laffey Matrix has been approved in a number of cases. See, e.g., *McDowell v. District of Columbia*, Civ. A. No. 00-594 (RCL), LEXSEE 2001 U.S. Dist. LEXIS 8114 (D.D.C. June 4, 2001); *Salazar v. Dist. of Col.*, 123 F.Supp.2d 8 (D.D.C. 2000).

* “Years Out of Law School” is calculated from June 1 of each year, when most law students graduate. “1-3” includes an attorney in his 1st, 2nd and 3rd years of practice, measured from date of graduation (June 1). “4-7” applies to attorneys in their 4th, 5th, 6th and 7th years of practice. An attorney who graduated in May 1996 would be in tier “1-3” from June 1, 1996 until May 31, 1999, would move into tier “4-7” on June 1, 1999, and tier “8-10” on June 1, 2003.

** The Adjustment Factor refers to the nation-wide Legal Services Component of the Consumer Price Index produced by the Bureau of Labor Statistics of the United States Department of Labor.

USAO ATTORNEY'S FEES MATRIX – 2015 – 2017

Revised Methodology starting with 2015-2016 Year

Years (Hourly Rate for June 1 – May 31, based on change in PPI-OL since January 2011)

Experience	2015-16	2016-17
31+ years	568	581
21-30 years	530	543
16-20 years	504	516
11-15 years	455	465
8-10 years	386	395
6-7 years	332	339
4-5 years	325	332
2-3 years	315	322
Less than 2 years	284	291
Paralegals & Law Clerks	154	157

Explanatory Notes

1. This matrix of hourly rates for attorneys of varying experience levels and paralegals/law clerks has been prepared by the Civil Division of the United States Attorney's Office for the District of Columbia (USAO) to evaluate requests for attorney's fees in civil cases in District of Columbia courts. The matrix is intended for use in cases in which a fee-shifting statute permits the prevailing party to recover "reasonable" attorney's fees. *See, e.g.*, 42 U.S.C. § 2000e-5(k) (Title VII of the 1964 Civil Rights Act); 5 U.S.C. § 552(a)(4)(E) (Freedom of Information Act); 28 U.S.C. § 2412(b) (Equal Access to Justice Act). The matrix has not been adopted by the Department of Justice generally for use outside the District of Columbia, or by other Department of Justice components, or in other kinds of cases. The matrix does **not** apply to cases in which the hourly rate is limited by statute. *See* 28 U.S.C. § 2412(d).
2. A "reasonable fee" is a fee that is sufficient to attract an adequate supply of capable counsel for meritorious cases. *See, e.g., Perdue v. Kenny A. ex rel. Winn*, 559 U.S. 542, 552 (2010). Consistent with that definition, the hourly rates in the above matrix were calculated from average hourly rates reported in 2011 survey data for the D.C. metropolitan area, which rates were adjusted for inflation with the Producer Price Index-Office of Lawyers (PPI-OL) index. The survey data comes from ALM Legal Intelligence's 2010 & 2011 Survey of Law Firm Economics. The PPI-OL index is available at <http://www.bls.gov/ppi>. On that page, under "PPI Databases," and "Industry Data (Producer Price Index - PPI)," select either "one screen" or "multi-screen" and in the resulting window use "industry code" 541110 for "Offices of Lawyers" and "product code" 541110541110 for "Offices of Lawyers." The average hourly rates from the 2011 survey data are multiplied by the PPI-OL index for May in the year of the update, divided by 176.6, which is the PPI-OL index for January 2011, the month of the survey data, and then rounding to the nearest whole dollar (up if remainder is 50¢ or more).
3. The PPI-OL index has been adopted as the inflator for hourly rates because it better reflects the mix of legal services that law firms collectively offer, as opposed to the legal services that typical consumers use, which is what the CPI-

Legal Services index measures. Although it is a national index, and not a local one, *cf. Eley v. District of Columbia*, 793 F.3d 97, 102 (D.C. Cir. 2015) (noting criticism of national inflation index), the PPI-OL index has historically been generous relative to other possibly applicable inflation indexes, and so its use should minimize disputes about whether the inflator is sufficient.

4. The methodology used to compute the rates in this matrix replaces that used prior to 2015, which started with the matrix of hourly rates developed in *Laffey v. Northwest Airlines, Inc.* 572 F. Supp. 354 (D.D.C. 1983), *aff'd in part, rev'd in part on other grounds*, 746 F.2d 4 (D.C. Cir. 1984), *cert. denied*, 472 U.S. 1021 (1985), and then adjusted those rates based on the Consumer Price Index for All Urban Consumers (CPI-U) for the Washington-Baltimore (DC-MD-VA-WV) area. Because the USAO rates for the years 2014-15 and earlier have been generally accepted as reasonable by courts in the District of Columbia, see note 9 below, the USAO rates for those years will remain the same as previously published on the USAO's public website. That is, the USAO rates for years prior to and including 2014-15 remain based on the prior methodology, *i.e.*, the original *Laffey* Matrix updated by the CPI-U for the Washington-Baltimore area. See *Citizens for Responsibility & Ethics in Washington v. Dep't of Justice*, --- F. Supp. 3d ---, 2015 WL 6529371 (D.D.C. 2015) and Declaration of Dr. Laura A. Malowane filed therein on Sept. 22, 2015 (Civ. Action No. 12-1491, ECF No. 46-1) (confirming that the USAO rates for 2014-15 computed using prior methodology are reasonable).
5. Although the USAO will not issue recalculated *Laffey* Matrices for past years using the new methodology, it will not oppose the use of that methodology (if properly applied) to calculate reasonable attorney's fees under applicable fee-shifting statutes for periods prior to June 2015, provided that methodology is used consistently to calculate the entire fee amount. Similarly, although the USAO will no longer issue an updated *Laffey* Matrix computed using the prior methodology, it will not oppose the use of the prior methodology (if properly applied) to calculate reasonable attorney's fees under applicable fee-shifting statutes for periods after May 2015, provided that methodology is used consistently to calculate the entire fee amount.
6. The various "brackets" in the column headed "Experience" refer to the attorney's years of experience practicing law. Normally, an attorney's experience will be calculated starting from the attorney's graduation from law school. Thus, the "Less than 2 years" bracket is generally applicable to attorneys in their first and second years after graduation from law school, and the "2-3 years" bracket generally becomes applicable on the second anniversary of the attorney's graduation (*i.e.*, at the beginning of the third year following law school). See *Laffey*, 572 F. Supp. at 371. An adjustment may be necessary, however, if the attorney's admission to the bar was significantly delayed or the attorney did not otherwise follow a typical career progression. See, *e.g.*, *EPIC v. Dep't of Homeland Sec.*, 999 F. Supp. 2d 61, 70-71 (D.D.C. 2013) (attorney not admitted to bar compensated at "Paralegals & Law Clerks" rate); *EPIC v. Dep't of Homeland Sec.*, 982 F. Supp. 2d 56, 60-61 (D.D.C. 2013) (same). The various experience levels were selected by relying on the levels in the ALM Legal Intelligence 2011 survey data. Although finer gradations in experience level might yield different estimates of market rates, it is important to have statistically sufficient sample sizes for each experience level. The experience categories in the current USAO Matrix are based on statistically significant sample sizes for each experience level.
7. ALM Legal Intelligence's 2011 survey data does not include rates for paralegals and law clerks. Unless and until reliable survey data about actual paralegal/law clerk rates in the D.C. metropolitan area become available, the USAO will compute the hourly rate for Paralegals & Law Clerks using the most recent historical rate from the USAO's former *Laffey* Matrix (*i.e.*, \$150 for 2014-15) updated with the PPI-OL index. The formula is \$150 multiplied by the PPI-OL index for May in the year of the update, divided by 194.3 (the PPI-OL index for May 2014), and then rounding to the nearest whole dollar (up if remainder is 50¢ or more).
8. The USAO anticipates periodically revising the above matrix if more recent reliable survey data becomes available, especially data specific to the D.C. market, and in the interim years updating the most recent survey data with the PPI-OL index, or a comparable index for the District of Columbia if such a locality-specific index becomes available.
9. Use of an updated *Laffey* Matrix was implicitly endorsed by the Court of Appeals in *Save Our Cumberland Mountains v. Hodel*, 857 F.2d 1516, 1525 (D.C. Cir. 1988) (en banc). The Court of Appeals subsequently stated that parties may rely on the updated *Laffey* Matrix prepared by the USAO as evidence of prevailing market rates for litigation counsel in the Washington, D.C. area. See *Covington v. District of Columbia*, 57 F.3d 1101, 1105 & n.14, 1109 (D.C. Cir. 1995), *cert. denied*, 516 U.S. 1115 (1996). Most lower federal courts in the District of Columbia

have relied on the USAO Matrix, rather than the so-called “Salazar Matrix” (also known as the “LSI Matrix” or the “Enhanced Laffey Matrix”), as the “benchmark for reasonable fees” in this jurisdiction. *Miller v. Holzmman*, 575 F. Supp. 2d 2, 18 n.29 (D.D.C. 2008) (quoting *Pleasants v. Ridge*, 424 F. Supp. 2d 67, 71 n.2 (D.D.C. 2006)); see, e.g., *Joaquin v. Friendship Pub. Charter Sch.*, --- F. Supp. 3d ---, 2016 WL 3034151 (D.D.C. 2016); *Prunty v. Vivendi*, --- F. Supp. 3d ---, 2016 WL 3659889 (D.D.C. 2016); *CREW v. U.S. Dep’t of Justice*, --- F. Supp. 3d ---, 2015 WL 6529371 (D.D.C. 2015); *McAllister v. District of Columbia*, 21 F. Supp. 3d 94 (D.D.C. 2014); *Embassy of Fed. Republic of Nigeria v. Ugwuonye*, 297 F.R.D. 4, 15 (D.D.C. 2013); *Berke v. Bureau of Prisons*, 942 F. Supp. 2d 71, 77 (D.D.C. 2013); *Fisher v. Friendship Pub. Charter Sch.*, 880 F. Supp. 2d 149, 154-55 (D.D.C. 2012); *Sykes v. District of Columbia*, 870 F. Supp. 2d 86, 93-96 (D.D.C. 2012); *Heller v. District of Columbia*, 832 F. Supp. 2d 32, 40-49 (D.D.C. 2011); *Hayes v. D.C. Public Schools*, 815 F. Supp. 2d 134, 142-43 (D.D.C. 2011); *Queen Anne’s Conservation Ass’n v. Dep’t of State*, 800 F. Supp. 2d 195, 200-01 (D.D.C. 2011); *Woodland v. Viacom, Inc.*, 255 F.R.D. 278, 279-80 (D.D.C. 2008); *American Lands Alliance v. Norton*, 525 F. Supp. 2d 135, 148-50 (D.D.C. 2007). But see, e.g., *Salazar v. District of Columbia*, 123 F. Supp. 2d 8, 13-15 (D.D.C. 2000). The USAO contends that the Salazar Matrix is fundamentally flawed, does not use the Salazar Matrix to determine whether fee awards under fee-shifting statutes are reasonable, and will not consent to pay hourly rates calculated with the methodology on which that matrix is based.